

**Milestone #2 Case Study- The FBI & Apple Security vs. Privacy**

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**Case study choice-** <https://ethicsunwrapped.utexas.edu/case-study/fbi-apple-security-vs-privacy>

## **Introduction to the Case Study**

The conflict between the FBI and Apple is one of the most widely discussed ethical dilemmas involving technology, privacy, and public safety. After a major crime, the FBI wanted Apple to unlock an iPhone that belonged to one of the attackers. Apple refused because doing so would require creating a special tool that could weaken the security of every iPhone. This disagreement raised an important question: Should a company protect the privacy of millions of users, or should it help the government investigate a serious crime? The case shows how two important values, privacy and security, can collide even when both sides believe they are acting responsibly (Ethics Unwrapped).

## **Background of the Case**

In December 2015, a terrorist attack took place in San Bernardino, California, resulting in the deaths of 14 people. After the attack, the FBI recovered an iPhone that belonged to one of the attackers, but the phone was locked. Investigators believed the device might contain important information about the attack or possible future threats. To access the phone, the FBI asked Apple to create a special version of its software that would allow them to bypass the phone's security features. Apple refused, explaining that creating such a tool would not only unlock this one device but could also be used to unlock any iPhone in the future. Apple argued that this would put millions of users at risk by weakening the security of their personal data. This disagreement quickly

became a national debate about privacy, safety, and the limits of government power (Ethics Unwrapped).

## **Key Stakeholders**

### **Ethical Values in Conflict (subcategories unsure if we want to utilize this or not!)**

- **Privacy vs. Security**

The FBI vs. Apple dispute raises significant legal issues about privacy versus security. In this case, the shooters' iPhone was the center of the conflict. Where is the line of protecting a person's privacy as well as protecting national security. The case Apple made about the creation of a backdoor to bypass encryption would infringe on privacy. They also argued it violates Apples first amendment rights if it was forced to write code. This opens the door for a private company to become an extension of government surveillance. They also argued such a tool could be misused by hackers or our government in a way that could exceed its intent. The Justice Department claimed that current legal safeguards are protected from any government overreach. They believe that access to the phone is critical for preventing and prosecuting crimes. They argued Apple's concerns were exaggerated and that sometimes the security of the nation may require lawful access to encrypted data. This case emphasizes the societal dilemma of how to keep the public safe while protecting citizens against digital and civil liberties.

- **Individual Rights vs. Collective Safety**

The issue of Individual Rights vs. Collective Safety sits at the center of this case. On one side is the individual's right to privacy, which includes the expectation that personal

devices, messages, photos, and other information remain protected from unnecessary intrusion. Apple argued that their strong encryption is one of the most important tools for protecting that right because it helps shield the user from hackers, identity theft, and unauthorized surveillance. Forcing Apple to weaken its own security would threaten not only the suspect's privacy, but the privacy rights of millions of users whose data depends on strong encryption (Abdo, 2016).

On the other hand, there is an argument for collective safety. The governments argued that in extraordinary circumstances, such as a terrorist attack, the need to protect the public and investigate serious crimes is a justified reason to access private data. From their perspective, the safety of the broader community can sometimes outweigh an individual's expectation of absolute privacy (Ethics Unwrapped). This dispute shows that protecting collective safety should not automatically require sacrificing individual rights, especially when the long-term consequences could extend well beyond a single investigation (Bonneau, 2017).

- **Corporate Responsibility vs. Government Authority**

From the government's perspective, they have a drive to maintain the interests of the public. In that sense, catching a perpetrator responsible for a terrorist attack represents a strong case for the government to demand action from Apple to help catch the criminal and deter further attacks. Their actions fit very much in line with standard Social Contract theory, in that the people give up certain powers to guarantee themselves the security that government can provide. Apple, as a non-administrative entity, therefore, has a civic responsibility to aid government agencies, like the FBI, in catching criminals to uphold public security and rule of law.

Apple on the other hand has another, but just as important, responsibility as a business to keep public and client interests in mind when making decisions. Their priority is to maintain user privacy and data security for their clientele, and creating a backdoor to upend the encryption on user data would undermine that duty to their customers. Their argument is very similar to that of a Rule Utilitarian, such that they apply the consequences of breaking their security very universally. As a universal rule, creating a tool to circumvent the protections of users would be unethical, so it is simply unethical to create such a tool, even in this criminal context. In that vein, they cannot guarantee such a tool would not escape their control, making it very dangerous for users if a malicious entity learned how to bypass their security. From both perspectives, the government and Apple have the public's interest in mind, yet their roles and responsibilities toward that entity ultimately clash with one another.

- **Key Stakeholders**

The dispute between the Federal Bureau of Investigation and Apple Inc. began after the 2015 San Bernardino terrorist attack, when investigators recovered a locked iPhone 5C used by one of the attackers (Smith). The main stakeholders in the case included the FBI and the U.S. government, who wanted access to the phone to gather evidence and protect public safety, and Apple, which aimed to protect the security and privacy of its users by refusing to create software that could bypass encryption (Smith). Other stakeholders included Apple customers and the general public, whose personal data could be affected if encryption protections were weakened. The case highlighted the larger debate between national security and individual privacy, and whether technology companies should be required to help law enforcement unlock encrypted devices

(Smith).

This list of stakeholders stretches past the ones at the surface once the FBI explained that they outsourced help from Australian hackers to access the iPhone, opening that door (Smith). Now including foreign tech and assistance, it has become blatantly obvious that people and agencies can access your information on your phone, essentially putting everyone that owns one at risk and stakeholders in an ethical dilemma (Quinn). This example for instance is one that sparked an instant loss of trust from users towards the other stakeholders, making consumers worldwide question just how safe their privacy is and if it really is protected.

- **Long-Term Harm vs. Short-Term Benefit:**

The biggest ethical issue the FBI and Apple faced was whether the short-term benefit of unlocking one iPhone outweighed the potential long-term risks to the privacy and security of millions of users. From the FBI's perspective, accessing the shooter's iPhone was important because it could help investigators determine whether the attackers were connected to a larger terrorist network that could threaten additional people. The FBI argued that accessing the phone was "vital to its investigation into whether the shooters were part of a larger terrorist network" (Ruth, 2023). In the short term, unlocking the phone could provide valuable information that would help law enforcement better understand the attack and possibly prevent future incidents.

However, Apple argued that creating software capable of bypassing iPhone security could create serious long-term risks. Apple refused to create the software because it believed that such technology could eventually be misused by governments or stolen by hackers. According to the article, Apple warned that this type of software

“could be used by the US government or stolen by hackers to access the data of any iPhone in the world” (Ruth, 2023). If this technology were misused or fell into the wrong hands, it could threaten the privacy and security of millions of iPhone users. Because of these risks, Apple believed that protecting the security of all users was more important than unlocking a single device. This reasoning reflects the ethical theory of utilitarianism, which suggests that decisions should prioritize the greatest good for the greatest number of people.

### **Why This Scenario Is an Ethical Dilemma**

Imagine a digital stronghold run by an architect who is suddenly ordered by the government to forge a master key, one that can pass through every lock, vault, and security protocol they ever built. This is the main area of conflict between Apple and the FBI. The ethical dilemma doesn't come from whether investigating a terrorist attack is just; it stems from the technical reality that a “backdoor” can't just be created for one single device.

Technically, forcing a company to engineer a way to pass breaks the core principles of Identity and Access Management (IAM) and Privilege Access Management (PAM).

Apple's encryption model relies strictly on the authenticated user's physical device and passcode. If apple were to comply and create custom software to disable the auto-erase function after 10 tries, they would be creating a limitless tool that circumvents all established identity lifecycles and access controls (Bonneau, 2017).

The dilemma poses the question: Does immediate law enforcement need to investigate

a tragic crime to justify the creation of a vulnerability that permanently weakens the cyber security posture of millions? If this tool is in the wrong hands, or if foreign governments demand the same access, the foundation of secure, privileged access is compromised globally. It's an impossible choice between the pursuit of justice and maintaining integrity of the encryption ecosystem that protects the public.

## **Conclusion**

The battle between the FBI and Apple remains a defining case study in the ongoing debate between digital privacy and national security. While the government pursues justice and public safety following a tragic attack is a vital responsibility, Apple's refusal to create an encryption "backdoor" highlights the severe, long-term risks of compromising global cybersecurity. Ultimately, this dilemma shows that there is no simple solution when collective safety and individual rights collide. As technology continues to evolve, society, tech companies, and lawmakers will consistently face the difficult challenge of balancing law enforcement needs with the data protections that millions of users rely on every day.



## References

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## Student Contributions

| Student           | Contributions                                                                                                                                     |
|-------------------|---------------------------------------------------------------------------------------------------------------------------------------------------|
| Eric Siriboury    | <ul style="list-style-type: none"><li>• Created outline</li><li>• Provided case study</li><li>• Introduction and Background of the case</li></ul> |
| Ahmad Barakat     | <ul style="list-style-type: none"><li>• Ethical Dilemma</li><li>• Conclusion</li><li>• Editor</li></ul>                                           |
| Gavin Billinger   | <ul style="list-style-type: none"><li>• Ethical Value: Corporate vs Government Authority</li></ul>                                                |
| Mitch Chelberg    | <ul style="list-style-type: none"><li>• Key Stakeholders</li></ul>                                                                                |
| Brydaniele Ighile | <ul style="list-style-type: none"><li>• Long term vs short term benefit</li></ul>                                                                 |
| Kyle Stander      | <ul style="list-style-type: none"><li>• Privacy vs. Security</li></ul>                                                                            |
| Haris Hilger      | <ul style="list-style-type: none"><li>• Individual Rights vs Collective Safety</li></ul>                                                          |